

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION EXPRESSING THE SUPPORT OF THE GOVERNING BODY FOR AN ACTION PLAN TO ADDRESS DEFICIENCIES REGARDING SIDEWALKS IN THE DOWNTOWN DEVELOPMENT DISTRICT."

WHEREAS, the Downtown Development District ("DDA") is the heart of the community and the center of tourism for the City of Cheyenne;

WHEREAS, public safety is a primary concern in the DDA District;

WHEREAS, sidewalks in poor repair decrease the overall appeal of the DDA District;

WHEREAS, property owners owe a general duty to maintain their property, including adjacent sidewalks, in a reasonably safe condition;

WHEREAS, it is the legal responsibility of the property owner to maintain sidewalks adjacent to their property by Cheyenne City Code 12.04.120.B;

WHEREAS, the Mayor's Council for People with Disabilities has expressed concern regarding the condition of sidewalks throughout the DDA District;

WHEREAS, in light of these concerns, in 2014, the DDA Board commissioned a report from Benchmark Engineering; and

WHEREAS, the 2014 Benchmark Engineering Report contains recommendations that remain valid today.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING OF THE CITY OF CHEYENNE, WYOMING, that all city departments shall be responsible for identifying sidewalk problems within the DDA District and shall coordinate a program for the identification, notification, and citation of trip hazards on sidewalks;

BE IT FURTHER RESOLVED, that ADA guidelines shall be taken into consideration and that the recommendations contained in the 2014 Benchmark Engineering Report shall be reviewed;

BE IT FURTHER RESOLVED, that the DDA Capital Improvement Grant (CIG) funding along with the City's miscellaneous concrete program funding shall be considered to assist DDA property owners in funding these sidewalk repairs; and

BE IT FURTHER RESOLVED, that the work of coordination by the city departments be completed by March 25, 2024.

PRESENTED, READ AND ADOPTED this _____ day of _____,
2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk